Complaints Policy

1. Purpose

The purpose of this policy and the Student Complaints Procedures is to provide the mechanism for resolving complaints made by students about their treatment by the University, the quality of service provided by the University or the conduct of University staff or students.

2. Scope

This policy applies to all students (non-award, undergraduate and postgraduate) of Cavendish University Zambia (henceforth “CUZ” or “University”) who wish to raise a problem or concern regarding their treatment as a student, the quality or delivery of a service provided by the University or the conduct of staff as being not in accordance with the expectations set out in the Student Charter, regardless of the location of those studies and whether they are conducted on-campus or off-campus.

The University is committed to promoting a ‘complaints friendly culture’, whereby complaints lead to useful information for the improvement of its services, by providing an easily accessible and responsive complaints handling process for students. Students have the right to make a complaint and to provide feedback about the University’s services and processes. Complaints made to the University are considered with courtesy, with due regard to confidentiality, and without fear of prejudicial treatment. All students are afforded procedural fairness as set out in this policy and the Student Complaints Procedures, being a fair opportunity to present their complaint and the right to have it considered by an unbiased decision-maker. All complaints are to be addressed in an equitable, objective and unbiased manner throughout the complaints handling process. Complaints are to be resolved in a timely fashion.

There is no assurance that all complaints may be resolved to the satisfaction of the student, particularly if they are related to the availability of resources for example, the timing and location of clinical placements or access to specialised facilities outside of the University’s standard operating hours.

This policy is accompanied by the Student Complaints Procedures. The Student Complaints Policy and the Student Complaints Procedures are complementary and should be considered in conjunction with each other.

3. Principles

3.1 General Principles

As a general principle staff and students are mutually responsible for resolving problems quickly through discussion and/or in writing at the local level, limiting the number of people involved to a minimum, for the purpose of avoiding an escalation of the problem in scope and impact.

In resolving problems, interactions amongst students and staff, including those mediated through online application business systems, are to be based on mutual respect, fairness and fulfilment of their obligations as specified in the Student Charter. Students should consider the issue calmly and present their complaint in a measured and courteous manner upon which the University can reflect, identify how it may improve its performance and respond in a respectful way. Students who use aggressive, malicious or defamatory language in making complaints to or about staff or other students may not facilitate resolution of their concern.

As a general principle a complaint is to be made independently of an application for review or appeal of a decision/s. To determine whether the matter is a reviewable decision, refer to the Student Review and Appeals Policy.

When a student requests a review of, or appeals, a University decision the student may also have a complaint about his or her treatment, quality of a service or conduct of staff or students. The review officer or appeal body may not be in a position to respond to the complaint when considering the review or appeal. In such instances, the student may make a complaint in accordance with the Student Complaints Policy, which will be considered separately from the review or appeal of the decision by the appropriate University officer.

3.2 Student Enrolment

In order to make a complaint in accordance with this policy the complainant is to be a 'student' of the University as defined in section 5 of the Student Complaints Procedures. For the student's complaint to be considered and properly or fully investigated in accordance with the Student Complaints Procedures, the student must maintain an active enrolment status with the University while the internal complaint handling process is ongoing.

3.3 Anonymous Complaints

It is recognised in some instances students may choose to make a complaint anonymously. While the University treats complaints reported anonymously seriously, it may be unable to either properly or fully investigate such a complaint or provide a decision or take action to resolve the complaint when the source of the complaint is unknown.

3.4 Student Cohort Complaints

Where a student cohort or several students have the same complaint, those students may act as a group in making a complaint, provided that each student is seeking the same outcome.

3.5 Age of Complaint

A complaint will be investigated if the student has made it within 12 months or less from the event that is the subject of the complaint. Where a complaint is older than 12 months, in acknowledging its receipt, the relevant University staff member will advise that the University is unable to investigate it, unless there are extenuating circumstances.

3.6 Roles and Responsibilities in Student Complaint Handling

The table below sets out the responsible officers for handling student complaints. The Quality Assurance Officer provides leadership in the handling of student complaints at the University. The Quality Assurance Officer considers complaints which arise from students, investigates as far as possible whether the University has acted fairly and reasonably and ensures matters are dealt with in a consistent and procedurally fair manner. The Quality Assurance Officer is not a decision-maker but may make recommendations to the responsible officer of the University Executive to resolve a complaint or to address systemic issues.

4. Definitions

Student enrolment is the activity status of a student with CUZ. A student is enroled if he/she has paid the registration fee for the semester, is current on their tuition and other fee payments, is attending class with the intention of taking exams and is completing the course successfully.

An anonymous complaint is complaint made by a student who opts to keep their identity confidential.

A student cohort is a group of students commencing their studies in a particular year with the view of attaining the same academic programme.

Terms defined in the Student Complaints Procedure have the same meaning when used in this policy.

Responsible Officers for Handling Student Complaints

Area of Complaint	Step 1 Informal Resolution	Step 2 Complaint to the relevant University Staff member	Step 3 Refer to Vice Chancellor
Conduct of Staff			
Academic Staff		Head of Department Dean of school if the matter is specific to academic staff employed by CUZ.	Dean of School Deputy Vice Chancellor Quality Assurance Officer
General staff	Approach the person concerned directly.	Manager of Service Area	
Conduct of Students			
Individual or a Group of students	Approach the person or group concerned directly.	Dean of Students Academic Registrar if the matter is of academic nature.	Quality Assurance Officer
Student Union/Organisation/ Club	Approach the person or group concerned directly.	Dean of Students	
Services			
Campus Services including accommodation, parking, sporting, food	Approach a front-line representative of the service area concerned directly or use student feeadback services and surveys.	Facilities Manager if the matter is specific to food or parking. Dean of Students if the matter is specific to accommodation, sporting activities.	Quality Assurance Officer
Information Services including library and learning resources, academic/learning/study support and IT services.	Approach a front-line representative of the service area concerned directly or use student feeadback services and surveys	Academic Registrar	Executive Director
Program, course and teaching quality including professional accreditation.	Approach the person concerned directly.	Dean of School	Executive Director
Student Services including examinations, timetabling, graduations and student administration/ Centre services counselling, student equity and disability, welfare and student liaison careers and employment, peer mentoring, tutoring support, scholarships	Approach a front-line representative of the service area concerned directly or use student feeadback services and surveys	Academic Registrar if the matter is specific to examinations, timetabling and graduations Dean of Students if the matter is specific to counselling, student disability, welfare, careers	

5. Process

The process of making a complaint is governed by the Student Complaints Procedures. The process has three steps:

Step 1 Resolve the concern informally

Step 2 Make a complaint to the relevant University Staff member

Step 3 Refer the complaint to the Quality Assurance Officer

All documentation relating to complaints will be kept confidential and shall be disclosed only to those persons who have a right to the information by virtue of their role in the complaints process, or as required by law.

The process is illustrated as a flow chart in Diagram 1 above, which is intended to be a useful guide for students on the process. However students who are making a complaint must have reference to the Student Complaints Procedures which governs the process of making a complaint.

6. Confidentiality

All documentation relating to complaints will be kept confidential and shall be disclosed only to those persons who have a right to the information by virtue of their role in the complaints process, or as required by law.

7. Complaints Involving Allegations Concerning a Staff Member

Where a student complaint includes allegations concerning the conduct of a staff member, and the substance of those allegations may constitute misconduct or serious misconduct as defined in CUZ Human Resource Manual, the allegation shall be managed in accordance with the provisions in the relevant manual.

8. Record Keeping

The Quality Assurance Officer will maintain a record of student complaints referred to the Quality Assurance Office. These records are maintained to protect the rights and interests of all parties; explain and justify the actions of the University and its employees; and document and explain the decision-making of the University. The record will include information about the complaint, including: what occurred; when it occurred; how it occurred; the parties involved; and the outcome. These records will form the data upon which the Quality Assurance's Office Quarterly Report to the Senate Academic Regulations Committee on its activities is based.

9. Consultation and Feedback

The University, through the Quality Assurance Office, will periodically seek feedback on satisfaction with complaint processes from complainants, persons and bodies involved in addressing student complaints. The information will be used only for quality review and improvement purposes.

10. Frivolous or Vexatious Complaints

The University may decline to take action in respect of a complaint that is assessed as frivolous or vexatious. A complaint is deemed to be frivolous or vexatious where the complaint is:

- without merit;
- the substance of the complaint has already been considered by the University and satisfactory measures have been taken to resolve the matter;
- dishonest or contains intentionally misleading information;
- pursued with undue persistence; or
- pursued in a manner that threatens, menaces or harasses a member of University staff or fellow student.

Complainants who engage in unreasonable behaviour in respect of making complaints may be dealt with in accordance with the University's Student Code of Conduct.

11. Withdrawal of a Complaint

A request by a student to withdraw a complaint may be made in writing at any time during the complaints process to the relevant University staff member or the Student Ombudsman. Notwithstanding this, the University reserves the right to continue to investigate a complaint if required to do so to satisfy other requirements or protect its own interests.

12. Outcomes of Complaint

In making a complaint a student requests a review (among other matters) of their treatment by the University, the quality or delivery of a service provided by the University or the conduct of University staff or students for the purpose of:

- receiving an apology;
- correcting an error in relation to the student or the student's record;
- having a decision made; and/or
- improving existing services and processes.

13. Complaint Review

Where the student is dissatisfied with the University's handling of their complaint, the student may lodge a complaint with the Vice Chancellors' office.

14. Approval Controls

Review

Academic Registrar

Approved

Executive Director

Vice-Chancellor

Chairperson of University Council